

Canterbury and District Water Act, 1960

8 & 9 ELIZ. 2 Ch. xxxiv

ARRANGEMENT OF SECTIONS

Section

1. Short title collective citation and date of operation.
2. Incorporation of Acts.
3. Interpretation.
4. Incorporation of Third Schedule.
5. Water rates and charges.
6. Charges for gardens and washing vehicles.
7. Additional capital.
8. Additional share capital to be part of general capital.
9. Maximum rates of dividend.
10. Power to borrow.
11. Application of certain enactments.
12. Saving for powers of Treasury.
13. Repeal and amendment.
14. Savings.
15. Costs of Act.

SCHEDULES:

First Schedule—Statement of capital of the Company.

Second Schedule—

Part I—Provisions of the Third Schedule excepted from incorporation.

Part II—Modifications of the Third Schedule to the Act of 1945.

Third Schedule—

Part I—Provisions of the Canterbury and District Water Acts and Orders 1866 to 1959 to be repealed.

Part II—Provisions of the Canterbury and District Water Acts and Orders 1866 to 1959 relating to both gas and water to be repealed so far as they relate to water.

Fourth Schedule—Amendment of Canterbury and District Water Acts and Orders 1866 to 1959.



CHAPTER xxxiv

An Act to apply to the Canterbury and District Water Company certain provisions of the Third Schedule to the Water Act 1945 to make provision as to the rates and charges the Company are authorised to levy to authorise the raising of further capital and for other purposes. [29th July 1960.]

WHEREAS the Canterbury and District Water Company (hereinafter in this Act referred to as "the Company") were incorporated by the Canterbury Gas and Water Act 1866 and by that Act and subsequent Acts and Orders were authorised to supply gas and water within the respective limits therein defined:

And whereas by virtue of the Gas Act 1948 the gas undertaking of the Company was transferred to the South Eastern Area Gas Board and the Company received as compensation for such transfer an amount of British Gas three per centum guaranteed stock 1990-95:

And whereas by the Canterbury and District Water Act 1952 the name of the Company was changed to that which it now bears and provision was made both for distributing to the shareholders a certain amount of the stock received as compensation for the gas undertaking and for reorganising the Company's capital structure:

And whereas by the Kent Water Act 1955 (hereinafter in this Act referred to as "the Act of 1955") there was transferred to the Company the water undertakings of the Herne Bay Waterworks Company and of the Whitstable Urban District Council and part

of the water undertaking of the Bridge Blean Rural District Council and the Company's limits of supply were extended accordingly:

And whereas provision was made in the Act of 1955 for continuing in force within the areas supplied by the Herne Bay Waterworks Company and the Whitstable Urban District Council respectively the statutory provisions regulating the charging powers of those two undertakers but subject to the qualification that before the first day of April nineteen hundred and sixty-one the Company was to promote a Bill and endeavour to secure its passing into law to secure an equality of charges in respect of the supply of water throughout its limits of supply:

And whereas by section 32 of the Water Act 1945 (hereinafter in this Act referred to as "the Act of 1945") provision is made for applying to the undertakings of statutory water undertakers the relevant provisions of the Third Schedule to that Act in substitution of the provisions of the Waterworks Clauses Acts 1847 and 1863:

And whereas it is expedient to apply to the undertaking of the Company the relevant provisions of the said Third Schedule and in connection with such application to make such provision as is in this Act provided regarding the rates and charges which the Company may levy within their limits of supply:

And whereas a statement of the capital of the Company is set forth in the First Schedule to this Act:

And whereas it is expedient to authorise the Company to raise additional capital and to borrow further money:

And whereas it is expedient to confer on the Company such other powers as are in this Act contained:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title
collective
citation and
date of
operation.

1.—(1) This Act may be cited as the Canterbury and District Water Act 1960.

(2) The Canterbury and District Water Acts and Orders 1866 to 1959 so much of the Kent Water Act 1955 as relates to the Company and this Act may be cited together as the Canterbury and District Water Acts and Orders 1866 to 1960.

(3) This Act shall come into force on the first day of January nineteen hundred and sixty-one.

2. The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Canterbury and District Water Acts and Orders 1866 to 1960 are hereby incorporated with this Act (namely):—

- (1) the Companies Clauses Consolidation Act 1845 except sections 56 to 60 (which relate to the conversion of the borrowed money into capital) and sections 161 and 162 (which provide for affording access to the special Act);
- (2) the Companies Clauses Act 1863 except Part IV (which relates to change of name) and the provisions thereof which limit the rate of dividend on preference capital.

For the purpose of such incorporation the term “special Act” in the said Acts respectively shall be construed as to mean this Act and the term “undertakers” shall mean the Company.

3.—(1) In this Act unless the subject or context otherwise requires the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated with this Act shall have the same respective meanings and—

- “the Act of 1938” means the Canterbury Gas and Water Act 1938;
- “the Act of 1945” means the Water Act 1945;
- “the Act of 1952” means the Canterbury and District Water Act 1952;
- “the Act of 1955” means the Kent Water Act 1955;
- “the Company” means the Canterbury and District Water Company;
- “the Minister” means the Minister of Housing and Local Government;
- “the Third Schedule” means the Third Schedule to the Act of 1945;
- “the undertaking” means the undertaking of the Company as for the time being existing.

(2) References in this Act to any other enactment shall be construed as references to that enactment as amended by any other enactment including this Act.

4.—(1) The provisions of the Third Schedule (except the provisions thereof mentioned in Part I of the Second Schedule to this Act) shall subject to the modifications set out in Part II of the said schedule apply to the undertaking and are hereby incorporated with each of the enactments comprised in the Canterbury and District Water Acts and Orders 1866 to 1960.

(2) The last foregoing subsection shall not apply to any provision of the Third Schedule to the extent to which that provision applies to the undertaking with or without modification otherwise than by virtue of this Act.

Water rates
and charges.

5.—(1) The Company may in respect of water supplied to any premises for domestic purposes charge a water rate of an amount not exceeding three shillings in the pound calculated—

- (a) in the case of a house or of premises used partly for business trade or manufacturing purposes or partly for the exercise of functions by any public authority on the net annual value thereof;
- (b) in the case of any other premises on such proportion of the net annual value thereof (not exceeding sixty-six and two-thirds per centum) as the Company may from time to time determine:

Provided that the Company may in any case make in respect of any such supply a minimum charge equal to the charge for the time being payable in respect of a house having a net annual value of ten pounds.

(2) The charge for a supply of water taken by meter shall not exceed three shillings and sixpence per thousand gallons.

Charges for
gardens and
washing
vehicles.

6.—(1) (a) Where water which the Company supply for domestic purposes and in respect of which they charge a water rate—

- (i) is used for watering a garden not exceeding three-quarters of an acre in area; or
- (ii) is used for horses washing vehicles or other purposes in stables garages or other premises where horses or vehicles are kept;

the Company may in either case if a hosepipe is used charge in respect of that use of the water an additional annual sum not exceeding forty shillings.

(b) Where in either such case water is drawn from a tap outside the house but no hosepipe is used the Company may charge an additional sum not exceeding twenty shillings.

(c) Sums charged under this subsection shall be paid either quarterly or half-yearly as the Company may determine and shall be recoverable in the manner in which water rates are recoverable.

(d) In this subsection "hosepipe" includes similar apparatus but not a sprinkler or a sprinkler hose.

(2) Where water which the Company supply for domestic purposes and in respect of which they charge a water rate is used for watering a garden exceeding three-quarters of an acre or where

a sprinkler or a sprinkler hose is used the terms and conditions on which the supply is given shall be determined in accordance with the provisions of section 27 of the Act of 1945.

7.—(1) The Company may from time to time after the coming into force of this Act raise additional capital not exceeding in the whole four hundred and forty-six thousand nine hundred and seven pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by one or more of those modes respectively. Additional capital.

(2) It shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of share capital than shall be sufficient to produce including any premiums and allowing for any discounts which may be obtained or allowed on the issue thereof the sum of four hundred and forty-six thousand nine hundred and seven pounds.

8. The additional capital authorised by the last foregoing section of this Act shall form part of the general share capital of the Company and save as is otherwise expressly provided by this Act the holders thereof respectively in proportion to the amount of their shares or stock shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as holders of share capital of the Company of the same class or description. Additional share capital to be part of general capital.

9.—(1) Subject to the provisions of this section the Company shall not in respect of any year pay dividends on their paid-up capital at rates greater than the following rates (that is to say):— Maximum rates of dividend.

- (a) on the consolidated ordinary stock created by or under the Act of 1952 and issued before the coming into force of this Act five per centum;
- (b) on ordinary capital (other than the said consolidated ordinary stock) seven per centum;
- (c) on preference capital six per centum or in the case of such capital entitled by the terms on which it was subscribed to a rate of dividend lower than six per centum that lower rate.

(2) Nothing in the last foregoing subsection shall prevent the payment of a greater dividend on so much of the paid-up share capital as is issued as ordinary capital in order to make up deficiencies in previous dividends:

Provided that as respects the ordinary capital referred to in paragraph (b) of subsection (1) of this section this subsection shall apply only in relation to deficiencies arising during the last five years before the year in respect of which a dividend is being paid.

Power to
borrow.

10.—(1) The Company may without obtaining any certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 raise for the purposes of the undertaking by borrowing either by way of mortgage of the undertaking or by the creation and issue of debenture stock or partly by one and partly by the other of those modes any sum or sums not exceeding in the whole (when added to any money borrowed on mortgage or raised by the creation and issue of debenture stock before the date of the coming into force of this Act and outstanding on the date of any exercise by the Company of the foregoing power of borrowing) fifty per centum of the amount (including premiums and allowing for discounts) which at the time of borrowing has been raised by the Company by the issue of share capital under the Canterbury and District Water Acts and Orders 1866 to 1960.

(2) For the purposes of this section where any ordinary or preference shares or stock have been or shall hereafter be issued for a consideration other than cash a sum equal to the nominal amount of such shares or stock shall be deemed to have been raised by the issue thereof.

Application
of certain
enactments.

11. The following provisions of the Act of 1952 shall so far as possible extend and apply to any ordinary or preference shares or stock debenture stock or mortgages created and issued or granted by or under the provisions of this Act or to any moneys raised thereunder as if those sections were with any necessary modifications re-enacted in this Act:—

Section 21 (Debenture stock);

Section 22 (Priority of mortgages and debenture stock over other debts);

Section 23 (Priority of principal moneys secured by existing mortgages);

Section 24 (Appointment of receiver);

Section 25 (Application of money).

Saving for
powers of
Treasury.

12. It shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Repeal and
amendment.

13.—(1) The following enactments are hereby repealed:—

(a) so much of the Canterbury and District Water Acts and Orders 1866 to 1952 as incorporates the Waterworks Clauses Act 1847 and the Waterworks Clauses Act 1863 or either of those Acts or any provision in either of those Acts;

- (b) the enactments mentioned in the first column of Part I of the Third Schedule to this Act to the extent specified in the second column of that Part;
- (c) the enactments mentioned in the first column of Part II of the said schedule so far as they relate to the undertaking to the extent specified in the second column of that Part;
- (d) so much of any section of any of the Canterbury and District Water Acts and Orders 1866 to 1959 as incorporates with or extends or applies to any purpose of that enactment any section or part of a section mentioned in the said schedule.

(2) The enactments mentioned in the first column of the Fourth Schedule to this Act shall have effect subject to the amendments specified in the second column of that schedule.

14. Without prejudice to the operation of section 38 of the Savings. Interpretation Act 1889—

- (a) all agreements and other instruments entered into or made before the coming into force of this Act under any enactment amended or repealed by this Act by or with the Company or any trustee or person acting on behalf of the Company or by or with any other person to whose rights or liabilities the Company have succeeded and in force immediately before the coming into force of this Act shall be as binding and of as full force and effect in every respect against or in favour of the Company and be enforceable as fully and effectually as if this Act had not been passed;
- (b) all notices and demands given or made under any enactment mentioned in the Third Schedule to this Act and in force immediately before the coming into force of this Act shall continue in force in like manner and to the like extent as if the enactment had not been repealed.

15. All costs charges and expenses of and incidental to the Costs of preparing applying for obtaining and passing of this Act or Act. otherwise in relation thereto may in whole or in part be defrayed out of revenue.

SCHEDULES

FIRST SCHEDULE

STATEMENT OF CAPITAL OF THE COMPANY

Enactment authorising capital (1)	Amount authorised (2)	Description of capital (3)	Nominal amount (4)	Premiums (5)	Discounts (6)	Total amounts received (7)	Amounts to be raised (8)
	£		£	£	£	£	£
Canterbury and District Water Act 1952	398,761	(Consolidated Ordinary Stock (Maximum dividend 5 per centum) 5 per centum Preference Stock .. 4½ per centum Redeemable Preference Stock 1977/80	239,507 35,972 42,000	497	—	317,976	80,785
Kent Water Act 1955 ..	154,332	5½ per centum Redeemable Preference Stock 1981/83	110,000	—	2,996	107,004	47,328
	553,093		427,479	497	2,996	424,980	128,113

SECOND SCHEDULE

PART I

PROVISIONS OF THE THIRD SCHEDULE EXCEPTED FROM INCORPORATION

Section 2 (Permissible limits of deviation).
Section 7 (Power to acquire easements for underground works).
Section 10 (Provisions as to compensation water).
Subsection (1) of section 46 (Water rates).
Section 48 (Additional charges where water supplied for domestic purposes and paid for by water rate is used for other purposes).
Section 74 (Maximum rates of dividend).

PART II

MODIFICATIONS OF THE THIRD SCHEDULE TO THE ACT OF 1945

Provision (1)	Modification (2)
Section 1 (Definitions &c.)	After the definition of the expression "a supply of water for domestic purposes" there shall be inserted the words "and 'domestic purposes' shall be construed accordingly".
Section 42 (Power of undertakers to require separate service pipes)	At the end of subsection (8) there shall be inserted the following words:— "or (d) the owner or occupier of any of the houses has caused or permitted interference with the existing service pipe or the stop-cock fixed thereto in such a way as to interrupt the supply of water to any other house supplied by such existing service pipe or the undertakers have reasonable grounds for apprehending that such interference is likely to take place".
Section 49 (Power to require supply to certain premises and for certain purposes to be taken by meter)	In subsection (3) for the words "annual charge equal to" there shall be substituted the words "quarterly charge equal to one-fourth of".
Section 50 (Power to require supplies for refrigerating or water-softening apparatus &c. to be taken by meter)	At the end of the section there shall be inserted the following subsection:— "(2) Any sum charged under the provisions of this section shall be recoverable in the manner in which water rates are recoverable."

2ND SCH.
—cont.

Provision (1)	Modification (2)
Section 51 (Power to require supply for hosepipe to be taken by meter in certain cases)	After the words “ or other similar apparatus ” there shall be inserted the words “ (not being a sprinkler or a sprinkler hose) ” and after the word “ garden ” there shall be inserted the words “ (not exceeding three-quarters of an acre in area) ”.
Section 54 (Water rates on certain houses may be demanded from owners)	(1) In subsection (1) for the words “ has a net annual value not exceeding thirteen pounds ” there shall be substituted the words “ is let on a weekly or monthly tenancy or for any term less than a quarter of a year or has a net annual value not exceeding eighteen pounds ”. (2) The proviso to the said subsection shall be omitted.
Section 64 (Penalty for waste &c. of water by non-repair of fittings)	The modification set out in the schedule to the Local Government (Miscellaneous Provisions) Act 1953.
Section 75 (Sale of stock by auction or tender)	The word “ stock ” shall include shares.
Section 76 (Reserve and contingency funds)	(1) In subsection (4) for the words “ twelve and a half ” there shall be substituted the word “ twenty ”. (2) In subsection (5) for the words “ one and a quarter ” there shall be substituted the word “ two ”.
Section 78 (Power to pay superannuation and other allowances &c. and to assist research)	(1) In subsection (1)— (a) after the word “ allowances ” in paragraph (a) there shall be inserted the words “ or make such other reasonable payments as they may think fit ”; (b) after the word “ establish ” in paragraph (b) there shall be inserted the words “ and from time to time modify alter or rescind ”; (c) for the words “ or allowances ” in paragraph (c) there shall be substituted the words “ allowances or payments ”.

Provision (1)	Modification (2)
Section 78— <i>cont.</i>	(2) At the end of subsection (2) there shall be inserted the following subsection:— “(2A) No modification alteration or rescission of any contributory superannuation scheme established under paragraph (b) of subsection (1) of this section shall place any employee who at the date of such modification alteration or rescission is entitled or is qualifying for entitlement to participate in the benefits of such scheme to a superannuation allowance in a worse position than he would have been if such modification alteration or rescission had not been made.”
Section 82 (Power to enter premises)	After paragraph (d) of subsection (1) there shall be inserted the following paragraphs:— “(e) for the purpose of cutting off the supply of water to any premises in any case in which the undertakers are authorised to cut off such supply; (f) for the purpose of repairing water fittings belonging to the undertakers which have been wilfully or negligently injured or suffered to be injured by the owner or occupier of the premises”.

THIRD SCHEDULE

PART I

PROVISIONS OF THE CANTERBURY AND DISTRICT WATER ACTS AND ORDERS 1866 TO 1959 TO BE REPEALED

Enactment (1)	Extent of repeal (2)
The Canterbury Gas and Water Act 1866— Section 13 (Debts owing by old Company recoverable)	The whole section.

3RD SCH.
—cont.

Enactment (1)	Extent of repeal (2)
Canterbury Gas and Water Act 1866—cont.	
Section 14 (Trustees of the Company to be indemnified)	The whole section.
Section 15 (Present and future rights and liabilities under repealed Act saved)	The whole section.
Section 16 (Rates and rents now payable to continue till altered)	The whole section.
Section 17 (Certificate and transfer of shares &c. to remain in force)	The whole section.
Section 18 (Officers to continue until removed)	The whole section.
Section 19 (Present register of shareholders to continue to be kept and books to be evidence)	The whole section.
Section 69 (Money paid into bank &c. to be applied under repealed Acts)	The whole section.
Section 70 (Company to continue to supply their works from present sources)	The whole section.
Section 71 (When new reservoir completed the hydrants in the city of Canterbury to be supplied therefrom except during pumping)	The whole section.
Section 72 (Compensation for injury done to Abbott's Mill)	The whole section.
Section 73 (Power for Company to supply water district with water)	The whole section.
Section 77 (Works affecting the River Stour to be executed to the satisfaction of the Commissioners of Sewers)	The whole section.
Section 81 (Regulations of Railways Clauses Consolidation Act applied to reservoirs)	The whole section.
Section 82 (Certain provisions of 10 Vict. c. 15 and c. 17 to extend to turnpike roads &c.)	The whole section.
Section 83 (Period within which waterworks to be completed)	The whole section.
Section 84 (Power to lay down pipes for water)	The whole section.
Section 86 (Water need not be laid on under pressure)	The whole section.
Section 87 (Rates at which water is to be supplied)	The whole section.

Enactment (1)	Extent of repeal (2)
<i>Canterbury Gas and Water Act 1866—cont.</i>	
Section 89 (Regulations for preventing waste)	The whole section.
Section 94 (Company to provide keys of plugs &c.)	The whole section.
Section 96 (Company to be remunerated for loss sustained by altering pipes &c. in certain cases)	The whole section.
Section 98 (Power to abandon part of present works)	The whole section.
Section 103 (Expenses of Act)	The whole section.
The Canterbury Water Order 1873	The whole order.
<i>Canterbury Gas and Water Act 1890—</i>	
Section 12 (Restriction on taking houses of labouring class)	The whole section.
Section 13 (Power to take easements &c. by agreement)	The whole section.
Section 15 (Reservation of water rights &c. on sale)	The whole section.
Section 65 (Expenses of Act)	The whole section.
The Canterbury Water Order 1927 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 6) Act 1927	The whole order.
<i>Canterbury Gas and Water Act 1938—</i>	
Section 4 (Interpretation)	So much as defines the expression “Communication pipe”.
Section 6 (Transfers of stock in the existing share capital to operate as transfers of substituted stock)	The whole section.
Section 8 (Certificates of stock in the existing share capital to be called in and others issued)	The whole section.
Section 59 (Power to purchase additional lands for water undertaking)	The whole section.
Section 60 (Limiting powers of Company to abstract water)	The whole section.
Section 62 (Persons under disability may grant easements &c.)	The whole section.

3RD SCH.
—cont.

Enactment (1)	Extent of repeal (2)
Canterbury Gas and Water Act 1938— <i>cont.</i>	
Section 64 (Retention and disposal of lands) . .	The whole section.
Section 65 (Power for protection of waters and waterworks)	The whole section.
Section 66 (Power to agree as to drainage of lands &c.)	The whole section.
Section 67 (As to exercise of powers of section 12 of Waterworks Clauses Act 1847)	The whole section.
Section 68 (Discharge of water into streams) . .	The whole section.
Section 69 (Meters &c. to measure water or detect waste)	The whole section.
Section 81 (Amendment of section 35 of Waterworks Clauses Act 1847)	The whole section.
Section 82 (As to annual value of two or more houses in one occupation)	The whole section.
Section 83 (Rates and charges payable by owners of small houses)	The whole section.
Section 84 (Supply by measure)	Subsection (1).
Section 85 (Price of supply by measure) . .	The whole section.
Section 86 (Minimum charge for certain supplies by measure)	The whole section.
Section 87 (Supply to houses partly used for trade &c.)	The whole section.
Section 88 (Charges for supplies for refrigerating apparatus &c.)	The whole section.
Section 89 (Charges for horses and washing vehicles)	The whole section.
Section 90 (Supplies to swimming baths and bathing pools)	The whole section.
Section 91 (As to charges for certain baths) . .	The whole section.
Section 92 (Special terms for supplies to caravans shacks and huts)	The whole section.
Section 93 (Water rates to be paid half-yearly)	The whole section.
Section 94 (Recovery of rates from persons removing)	The whole section.

Enactment (1)	Extent of repeal (2)
<i>Canterbury Gas and Water Act 1938—cont.</i>	
Section 96 (Separate communication pipes may be required)	The whole section.
Section 97 (Maintenance of common pipe) ..	The whole section.
Section 98 (Company to connect communication pipes with mains)	The whole section.
Section 99 (Stop-cocks &c. to be fitted in communication pipes)	The whole section.
Section 100 (Extension of powers for preventing waste &c. of water)	The whole section.
Section 101 (Power to Company to repair communication pipes)	The whole section.
Section 102 (Notice to Company of connecting or disconnecting meters)	The whole section.
Section 103 (Register of meters to be prima facie evidence)	The whole section.
Section 104 (Injuring meters &c.)	The whole section.
Section 105 (Penalty for closing valves and apparatus)	The whole section.
Section 106 (Penalty for opening valves and apparatus)	The whole section.
Section 107 (Extension of power to inspect premises)	The whole section.
Section 108 (Power to remove water meters and fittings)	The whole section.
Section 109 (Opening of ground by person liable to maintain pipes &c.)	The whole section.
Section 114 (Power to grant pensions &c.) ..	The whole section.
Section 115 (Superannuation Scheme) ..	The whole section.
Section 120 (Authentication and service of notices by Company)	The whole section.
Section 124 (Recovery of demands)	The whole section.
Section 130 (Costs of Act)	The whole section.

3RD SCH.
—cont.

Enactment (1)	Extent of repeal (2)
Canterbury and District Water Act 1952—	
Section 18 (Maximum rates of dividend)	The whole section.
Section 19 (Application of certain provisions of Third Schedule to Water Act)	The whole section.
Section 20 (Power to borrow) ..	The whole section.
Kent Water Act 1955—	
Section 3 (Incorporation of Acts) ..	In paragraph (b) of subsection (4) the words “Part X (Canterbury and district area)” and the proviso to that paragraph.
Section 94 (Canterbury charges) ..	The whole section.
Section 95 (Additional Canterbury capital)	So much of the section as relates to the borrowing of money and the issue of debenture stock and the proviso to subsection (3).
Part X of the Fourth Schedule ..	So much of paragraph 1 as continued in force the following enactments:— Section 31 of the Herne Bay Water Act 1867 section 7 of the Herne Bay Water Order 1883 section 20 (Limit of pressure) section 21 (Rates for supply of water for domestic purposes) section 26 (Supply by meter in certain cases) and section 27 (Supply of water for other than domestic purposes by measure) of the Whitstable Water and Improvement Act 1902 the Herne Bay Waterworks Company (Modification of Charges) Order 1922 and section 4 of the Herne Bay Water Order 1948.

PART II

3RD SCH
—cont.

PROVISIONS OF THE CANTERBURY AND DISTRICT WATER ACTS AND
ORDERS 1866 TO 1959 RELATING TO BOTH GAS AND WATER TO BE
REPEALED SO FAR AS THEY RELATE TO WATER.

Enactment (1)	Extent of repeal (2)
Canterbury Gas and Water Act 1866—	
Section 95 (Situation of pipes &c. under private roads may be altered if owners desire it)	The whole section.
Section 101 (Company not exempt from Public Health Acts)	The whole section.
Canterbury Gas and Water Act 1890—	
Section 8 (Power to purchase other lands by agreement)	The whole section.
Section 16 (Power to supply gas and water apparatus and engines and stoves &c. for heating motor power and other purposes)	The whole section.
Section 51 (Company may contract with sanitary authority for supply in bulk)	The whole section.
Section 56 (Power to refuse to supply persons in debt for other property)	The whole section.
Section 58 (Company to pay interest on money deposited on security)	The whole section.
Canterbury Gas and Water Act 1938—	
Section 61 (Recreation ground for employees)	The whole section.
Section 111 (Fittings let for hire not to be subject to distress &c.)	The whole section.
Section 112 (Notice to discontinue supply)	The whole section.
Section 113 (As to streets forming boundary of limits of supply)	The whole section.
Section 118 (For protection of the Kent Rivers Catchment Board)	The whole section.

3RD SCH.
—cont.

Enactment (1)	Extent of repeal (2)
Canterbury Gas and Water Act 1938 —cont.	
Section 121 (As to recovery of sums due for fittings &c.)	The whole section.
Section 123 (Liability to rent &c. not to disqualify justices &c.)	The whole section.
Section 125 (Several sums in one summons)	The whole section.
Section 126 (Recovery of penalties)	The whole section.

FOURTH SCHEDULE

AMENDMENT OF CANTERBURY AND DISTRICT WATER
ACTS AND ORDERS 1866 TO 1959

Act or Order	Enactment amended	Amendment
Canterbury Gas and Water Act 1866	Section 45 (Committee of directors)	For the word "three" there shall be substituted the word "two".
Canterbury Gas and Water Act 1938	Section 14 (Special provision for benefit of small investors)	For the words "the section of this Act of which the marginal note is 'Sale of share capital by auction or tender'" there shall be substituted the words "Section 75 (Sale of stock by auction or tender) of the Third Schedule to the Water Act 1945 as incorporated with and applied to the Company by the Canterbury and District Water Act 1960".
	Section 54 (Quorum of directors)	For the word "three" there shall be substituted the word "two".

Table of Statutes referred to in this Act

Short title	Session and chapter
The Companies Clauses Consolidation Act 1845	8 & 9 Vict. c. 16.
The Waterworks Clauses Act 1847	10 & 11 Vict. c. 17.
The Waterworks Clauses Act 1863	26 & 27 Vict. c. 93.
The Canterbury Gas and Water Act 1866 ..	29 & 30 Vict. c. xcix.
The Interpretation Act 1889	52 & 53 Vict. c. 63.
The Canterbury Gas and Water Act 1890 ..	53 Vict. c. xxvii.
The Canterbury Gas and Water Act 1938 ..	1 & 2 Geo. 6 c. lxxxvii.
The Water Act 1945	8 & 9 Geo. 6 c. 42.
The Canterbury and District Water Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. xxxi.
The Kent Water Act 1955	4 & 5 Eliz. 2 c. xi.

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SIR JOHN ROUGHTON SIMPSON, C.B.
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LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 6d. net

PRINTED IN ENGLAND